

INDEPENDENT CONTRACTOR AGREEMENT

独立承包商协议

State of Illinois | Project-Based Logistics Services / 伊利诺伊州 | 项目制物流服务

This Independent Contractor Agreement ("Agreement") is entered into as of _____, by and between the Company and the Contractor identified below (collectively, the "Parties").

本独立承包商协议 ("本协议") 由下方列明的公司与承包商 (合称"双方") 于 _____ 签订。

1. Parties / 当事人

Company / 公司

Company Name / 公司名称: Prime Anchor Point LLC

Business Address / 营业地址: 18 Congress Circle West, Roselle, IL 60172

Authorized Contact / 授权联系人: Qiushi Zhang

Phone / Email / 电话 / 邮箱: _____

Contractor / 承包商

Legal Name / 法定姓名: _____

Address / 地址: _____

Phone / Email / 电话 / 邮箱: _____

Tax ID (SSN/ITIN/EIN) — W-9 required / 税号 (SSN/ITIN/EIN) — 须提交 W-9: _____

2. Independent Contractor Relationship / 独立承包商关系

Contractor is engaged as an independent contractor and not as an employee, agent, partner, or joint venturer of Company. Contractor is solely responsible for all federal, state, and local income, self-employment, and other taxes on compensation received. No tax withholding will be made by Company. Contractor is not entitled to employee benefits, including but not limited to health insurance, paid leave, sick pay, overtime, retirement contributions, unemployment insurance, or workers' compensation. Contractor shall complete IRS Form W-9 prior to first payment; Company will issue Form 1099-NEC for annual compensation of \$600 or more.

承包商作为独立承包商受聘, 并非公司的员工、代理、合伙人或合资人。承包商对所获报酬的联邦、州及地方所得税、自雇税及其他各项税款承担全部责任。公司不预扣任何税款。

承包商无权享有员工福利, 包括但不限于医疗保险、带薪休假、病假工资、加班费、退休金缴费、失业保险及工伤保险。承包商应在首次付款前提交 IRS W-9

表格; 公司将对年度报酬达到 600 美元及以上的承包商签发 1099-NEC 表格。

3. Scope of Services / 服务范围

Contractor may, on an assignment-by-assignment basis, provide project-based logistics, material handling, loading and unloading, sorting, packaging, labeling, inventory support, or related services. Each assignment shall be agreed in writing (including email or text message) and shall specify: (a) description of services, (b) location, (c) target completion date, (d) agreed project fee, and (e) any special requirements. Nothing in this Agreement obligates Company to offer, or Contractor to accept, any particular assignment.

承包商可按逐次分派的方式提供项目制物流、物料搬运、装卸、分拣、包装、贴标、库存支持或相关服务。每次分派须以书面形式约定 (包括电子邮件或短信), 并应载明: (a) 服务描述、(b) 地点、(c) 预期完成日期、(d) 约定项目费用、(e) 任何特殊要求。本协议不要求公司必须提供任何具体工作, 也不要求承包商必须接受任何具体工作。

4. Control of Work / 工作控制权

Contractor retains sole control over the manner, method, sequence, means, and schedule of performing the services. Company may specify desired results, deadlines, and quality standards, but does not direct or control how Contractor performs the work. Contractor may engage Contractor's own assistants or subcontractors at Contractor's own expense and responsibility, provided they are bound by confidentiality obligations equivalent to this Agreement and that Contractor remains fully responsible for the quality and timeliness of services.

承包商对服务执行的方式、方法、顺序、手段及工作时间享有独立控制权。公司可规定预期结果、截止时间及质量标准, 但不指挥或控制承包商如何完成工作。承包商可自行雇用助手或转包商, 由承包商自行承担费用与责任, 但该等人员须受与本协议同等效力的保密义务约束, 且承包商对服务的质量与及时性仍负全部责任。

5. Compensation / 报酬

Compensation shall be determined on a project-based or flat-fee basis as agreed in writing for each assignment. Payment may be made by check, ACH transfer, Zelle, or other mutually agreed method. No taxes will be withheld. Nothing in this Agreement guarantees any minimum amount of work or compensation.

报酬按项目制或固定费用方式确定, 每次分派以书面方式约定。付款方式可包括支票、ACH 转账、Zelle

或双方同意的其他方式。公司不预扣任何税款。本协议不保证任何最低工作量或最低报酬。

6. Invoicing and Payment / 发票与付款

Upon completion of an assignment, Contractor shall submit an invoice including: assignment date(s), description of services, agreed fee, Contractor's Tax ID, and remit-to information. Payment shall be made within thirty (30) days of receipt of a proper invoice. If Company disputes any portion, Company shall notify Contractor in writing within ten (10) business days and pay the undisputed portion within the standard period.

承包商在完成分派后应提交发票, 发票须包含: 分派日期、服务描述、约定费用、承包商税号及收款信息。公司应在收到合规发票后三十 (30) 日内付款。如公司对发票任何部分有异议, 应在十 (10) 个工作日内书面通知承包商, 并按通常期限支付无争议部分。

7. Safety, Compliance, and Risk of Loss / 安全、合规与风险承担

Contractor shall comply with all applicable federal, state, and local laws, including OSHA standards, and with reasonable worksite safety requirements. Contractor shall use appropriate personal protective equipment. Contractor is NOT covered by Company's workers' compensation insurance and assumes all risk of injury or loss arising from the performance of services. Contractor is strongly advised to obtain Contractor's own occupational accident, general liability, and (if operating vehicles) automobile insurance.

承包商应遵守所有适用的联邦、州、地方法律 (包括 OSHA 标准) 及合理的现场安全要求, 并使用适当的个人防护装备。承包商不受公司工伤保险 (workers' compensation) 覆盖, 并自行承担因履行服务而产生的所有受伤或损失风险。强烈建议承包商自行投保职业意外险、一般责任险, 以及 (如使用车辆) 汽车保险。

8. Background, Credentials, and Work Authorization / 背景、资质与工作授权

Contractor represents that all information provided to Company is true and accurate, that Contractor possesses any licenses or certifications required to perform the services, and that Contractor has lawful authorization to work in the United States. Contractor consents to reasonable background checks (criminal, motor vehicle, references) when relevant to an assignment, performed in compliance with applicable law.

承包商声明其向公司提供的信息真实准确, 承包商持有履行服务所需的任何执照或证书, 且承包商在美国具有合法工作授权。承包商同意公司在与具体分派相关的合理范围内, 依据适用法律进行背景调查 (刑事、机动车记录、推荐人)。

9. Confidentiality / 保密

Contractor shall keep confidential all non-public business, customer, operational, and financial information of Company and its clients, including but not limited to customer lists, pricing, logistics procedures, warehouse layouts, shipment volumes, vendor information, and software systems, during and after the term of this Agreement. Upon termination or upon request, Contractor shall return or destroy all Company materials in Contractor's possession. This obligation does not apply to information publicly available through no fault of Contractor.

承包商同意对公司及其客户的所有非公开商业、客户、运营及财务信息保密, 包括但不限于客户名单、定价、物流流程、仓库布局、货运量、供应商信息及软件系统, 本义务在协议存续期间及终止后持续有效。协议终止时或经公司要求时, 承包商应及时归还或销毁其持有的所有公司材料。本义务不适用于非因承包商过错而已公开的信息。

10. Intellectual Property and Work Product / 知识产权与工作成果

Any records, data, route information, process improvements, inventory reports, or other work product created by Contractor in the course of performing services for Company shall be the sole property of Company. Contractor hereby assigns all rights, title, and interest in such work product to Company and agrees to execute documents reasonably necessary to perfect Company's ownership. Pre-existing materials owned by Contractor remain Contractor's property.

承包商在为公司提供服务过程中产生的任何记录、数据、路线信息、流程改进、库存报告或其他工作成果, 均为公司独有财产。承包商在此将该等工作成果的全部权利、所有权和利益转让给公司, 并同意签署完善公司所有权所需的合理文件。承包商在受聘前已拥有的材料仍归承包商所有。

11. Non-Solicitation / 禁止招揽

During the term of this Agreement and for twelve (12) months after termination, Contractor shall not, directly or indirectly: (a) solicit any customer of Company with whom Contractor had contact through this engagement, for purposes of providing competing services; or (b) solicit, recruit, or hire any other contractor or employee of Company. This Section is not a non-compete and does not restrict Contractor from providing services to other companies generally.

在本协议存续期间及终止后十二 (12) 个月内, 承包商不得直接或间接: (a) 招揽其因本协议接触到的公司任何客户, 以提供竞争性服务; 或 (b) 招揽、招募或雇用公司的其他承包商或员工。本条不构成竞业禁止, 不限制承包商一般性地为其他公司提供服务。

12. Anti-Discrimination and Anti-Harassment / 反歧视与反骚扰

Company is committed to a workplace free of discrimination and harassment based on race, color, national origin, sex, gender identity, sexual orientation, religion, age, disability, or any other protected characteristic. Contractor agrees to conduct services consistent with this commitment. Any concern regarding discrimination or harassment may be reported to Qiushi Zhang, who will investigate promptly and in good faith.

公司致力于建立不因种族、肤色、民族出身、性别、性别认同、性取向、宗教、年龄、残障或其他受保护特征而歧视或骚扰的工作场所。承包商同意按上述承诺开展服务。任何关于歧视或骚扰的顾虑可向 Qiushi Zhang 报告，其将及时、善意地进行调查。

13. Expenses and Equipment / 费用与设备

Contractor shall provide Contractor's own tools, equipment, transportation, fuel, mobile phone, and other resources necessary to perform the services. Company will not reimburse expenses unless expressly agreed in writing in advance for a specific assignment. Contractor is responsible for all of Contractor's own business expenses.

承包商应自行提供完成服务所需的工具、设备、交通工具、燃油、手机及其他资源。除事先就特定分派书面明确约定外，公司不报销任何费用。承包商自行承担其全部经营费用。

14. Data Security and Company Property / 数据安全与公司财产

If Contractor accesses Company or client data, scanners, tablets, badges, or other property, Contractor shall handle such property according to Company's reasonable security guidelines, shall not share access credentials, and shall promptly report any loss, theft, or suspected data breach. All Company property shall be returned upon termination or upon request.

如承包商使用公司或客户的数据、扫描枪、平板、门禁卡或其他财产，承包商应按公司合理的安全指引处置该等财产，不得分享访问凭据，并及时报告任何遗失、被盗或疑似数据泄露事件。所有公司财产应在协议终止时或经要求时归还。

15. Indemnification / 赔偿

Contractor shall indemnify, defend, and hold harmless Company and its members, officers, and affiliates from and against any and all claims, damages, losses, liabilities, and expenses (including reasonable attorneys' fees) arising out of or related to: (a) Contractor's negligent, reckless, or willful acts or omissions; (b) Contractor's breach of this Agreement; (c) Contractor's violation of any law; or (d) any claim that Contractor or Contractor's assistants should have been classified as employees of Company, except to the extent caused by Company's own gross negligence or willful misconduct.

承包商应就以下事项产生或与之相关的任何及全部索赔、损害、损失、责任及费用（包括合理律师费），向公司及其成员、管理人员及关联方作出赔偿、辩护并使其免受损害：（a）承包商的疏忽、轻率或故意作为或不作为；（b）承包商违反本协议；（c）承包商违反任何法律；或（d）任何主张承包商或其助手应被归类为公司员工的索赔；但因公司自身的重大过失或故意不当行为所致部分除外。

16. Insurance / 保险

Company recommends, and may require for certain assignments, that Contractor maintain: (a) general liability insurance; (b) occupational accident or equivalent coverage; and (c) automobile liability insurance if Contractor operates a vehicle in performing services. Upon request, Contractor shall provide certificates of insurance (COI) to Company.

公司建议承包商投保以下保险，并可能在特定分派中要求承包商持有此类保险：（a）一般责任险；（b）职业意外险或同等保险；以及（c）如承包商在履行服务时驾驶车辆，则须投保汽车责任险。经公司要求，承包商应向公司提供保险证明（COI）。

17. Non-Exclusivity, Termination, and Final Settlement / 非排他性、终止与结算

Contractor is free to provide services to other companies at any time. Either party may terminate this Agreement, with or without cause, upon seven (7) days' written notice. Either party may terminate immediately for material breach. Upon termination: (a) Company shall pay Contractor for all completed assignments and the pro-rata portion of any assignment in progress; (b) Contractor shall return Company materials; (c) Sections 9-12, 15, 18, and 20 survive termination.

承包商有权随时为其他公司提供服务。任一方均可在向对方提前七（7）日书面通知后，无论有无原因终止本协议；如发生重大违约，任一方可立即终止。终止时：（a）公司应支付已完成的分派全部款项以及进行中分派的按比例款项；（b）承包商应归还公司材料；（c）第 9-12 条、第 15 条、第 18 条及第 20 条在终止后仍持续有效。

18. Force Majeure / 不可抗力

Neither party shall be liable for any failure or delay in performance due to events beyond its reasonable control, including acts of God, severe weather, fire, flood, pandemic, government orders, civil unrest, labor disputes not involving the parties, or large-scale utility or transportation failures. The affected party shall promptly notify the other and use reasonable efforts to resume performance.

因任一方合理控制之外的事件（包括天灾、严重天气、火灾、洪水、疫情、政府命令、社会动乱、与双方无关的劳资纠纷或大规模公用事业或运输中断）导致履行不能或延迟的，任一方均不承担责任。受影响方应及时通知对方，并尽合理努力恢复履行。

19. Notices / 通知

All formal notices under this Agreement shall be in writing and delivered by: (a) email to the address on file (deemed received upon successful transmission); (b) U.S. certified mail to the address listed in Section 1 (deemed received three business days after mailing); or (c) personal delivery. Each party shall notify the other of any change of address or email.

本协议项下的所有正式通知应以书面形式作出，并通过以下方式送达：（a）发送至备案邮箱（成功发送时视为送达）；（b）通过美国挂号信寄至第 1 条所列地址（寄出后三个工作日视为送达）；或（c）当面递送。任一方变更地址或邮箱时，应通知对方。

20. Governing Law, Jurisdiction, Miscellaneous, and Translation / 适用法律、管辖、杂项与翻译

This Agreement is governed by the laws of the State of Illinois, without regard to conflict-of-laws principles, and the Parties consent to the exclusive jurisdiction of the state and federal courts in Cook County, Illinois. This Agreement, with any written assignment terms, is the entire agreement and supersedes all prior understandings; any amendment must be in writing and signed by both Parties. If any provision is invalid, the remainder remains in full force. No waiver of a breach is a waiver of any later breach. Neither party may assign this Agreement without the other's written consent. The English version controls in case of any inconsistency between language versions.

本协议适用伊利诺伊州法律并据其解释，不考虑其法律冲突原则；双方同意由伊利诺伊州库克郡（Cook County）的州法院或联邦法院专属管辖。本协议连同任何书面分派条款构成完整协议，取代此前所有理解；任何修订须经双方书面签署。如本协议任何条款被认定为无效，其余条款仍完全有效。对任何违约的放弃不构成对此后违约的放弃。未经对方书面同意，任一方不得转让本协议。若不同语言版本之间存在不一致，以英文版本为准。

21. Contractor Acknowledgment / 承包商确认

Contractor acknowledges and confirms that: (a) Contractor has read and understands this Agreement in full; (b) Contractor is engaged as an independent contractor, not an employee; (c) Contractor is solely responsible for all applicable taxes and is not covered by Company's workers' compensation insurance; and (d) Contractor has had the opportunity to review this Agreement and, if desired, consult independent legal or tax counsel.

承包商确认：（a）已完整阅读并理解本协议；（b）系作为独立承包商而非员工受聘；（c）独自承担所有适用税款且不受公司工伤保险覆盖；（d）已获得审阅本协议的机会，并可视需要咨询独立法律或税务顾问。

In case of any inconsistency between the English and Chinese versions, the English version controls. / 中英文版本如有不一致，以英文版本为准。

Company Signature / 公司签字

Signature / 签字: _____

Name & Title / 姓名与职位: Qiushi Zhang, Member / Authorized Representative

Date / 日期: _____

Contractor Signature / 承包商签字

Signature / 签字: _____

Printed Name / 印刷体姓名: _____

Date / 日期: _____